

25STCV05429 25STCV05429

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Case Number: 25STCV05429 Hearing Date: September 1, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion to Seal

The Motion to Seal is denied.

BACKGROUND

Plaintiff Cordeny Kelly (Plaintiff) filed this action against Sprouts Farmers Market, LLC and Christian McCormick, alleging that he slipped on a store rack and was injured. SF Markets, LLC dba Sprouts Farmers Market (Sprouts), sued as Sprouts Farmers Market, LLC, and Christian McCormick (collectively, "Defendants") are the moving parties.

The causes of action are: (1) General Negligence; and (2) Premises Liability.

Defendants filed a Motion to Seal. Plaintiff filed a Statement of Non-Opposition.

LEGAL STANDARD

"Unless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule 2.550(c).) "[I]n general, the First Amendment provides a right of access to ordinary civil trials and proceedings." (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1212.)

A court may order a record filed under seal "only if it expressly finds facts that establish: [¶] (1) There exists an overriding interest that

overcomes the right of public access to the record; [¶] (2) The overriding interest supports sealing the record; [¶] (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; [¶] (4) The proposed sealing is narrowly tailored; and [¶] (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550(d).) An order sealing a record must “[s]pecifically state the facts that support the findings,” and must direct the sealing of “only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal.” (Cal. Rules of Court, rule 2.550(e)(1)(A), (B).)

“A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal. Rules of Court, rule 2.551(a).) The moving party files “a memorandum and a declaration containing facts sufficient to justify the sealing.” (Cal. Rules of Court, rule 2.551(b)(1).) That party “must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them.” (H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894.)

ANALYSIS

I. Late Filing

Plaintiff acknowledges that the Statement of Non-Opposition was filed after the deadline Code of Civil Procedure section 1005, subdivision (b), sets for opposition papers, and asks the Court to consider it. (Non-Opp., at p. 1:20-23.) “No paper may be rejected for filing on the ground that it was untimely submitted for filing,” and a court that declines to consider a late filed paper must say so in its minutes or order. (Cal. Rules of Court, rule 3.1300(d).) The statement opposes no relief and addresses the findings rule 2.550(d) requires the Court to make whether or not any party appears. The Court exercises its discretion to consider it.

II. Confidentiality Stipulation

First, Defendants argue that a Confidentiality Agreement and Stipulation the parties executed makes the CCTV recordings confidential and supports sealing them. (Mot., at pp. 2:1-5, 3:8-11.) The Court “must not permit a record to be filed under seal based solely on the agreement or stipulation of the

parties.” (Cal. Rules of Court, rule 2.551(a).) Defendants offer the stipulation as evidence that the parties recognize the material as sensitive and have consistently treated it as confidential. (Kawakami Decl., ¶ 1.) A stipulation is evidence of how the parties have handled the material between themselves. It is not a finding, and rule 2.551(a) forbids the Court to treat it as one.

The Court signed the stipulation as an order on July 25, 2025. That order approved an agreement governing how the parties would handle Sprouts’s confidential material among themselves. It made no finding under rule 2.550(d). Rule 2.551(a) requires those findings before any record is filed under seal.

Plaintiff states that he does not dispute that Defendants have identified potential privacy and confidentiality concerns, and that the asserted interests may support some protection. (Non-Opp., at p. 3:6-9.) A concession that an interest may exist is not evidence of the facts that would establish one, and rule 2.550(d) conditions sealing on facts the Court expressly finds.

III. Overriding Interest

Next, Defendants identify two interests they say overcome the right of public access. The first is the privacy of the customers the cameras recorded, none of whom has a connection to this action. The second is the confidentiality of the camera coverage, which is part of the store’s loss prevention. (Mot., at p. 4:16-27.)

A. Customer Privacy

Defendants cite article I, section 1 of the California Constitution for the first interest, which lists privacy as an inalienable right. (Mot., at p. 4:7-14.) “A ‘reasonable’ expectation of privacy is an objective entitlement founded on broadly based and widely accepted community norms.” (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 37.)

Defendants provide the declaration of their counsel, Kristie Kawakami, who describes the recordings as an overhead view of the produce department at one of Defendants’ stores, including the produce area, the refrigerated area where alcohol is kept, and the bakery. (Kawakami Decl., ¶ 2.) It states that the recordings depict a significant number of third-party individuals not involved in this suit, and that they will disclose the conduct of many customers

unrelated to it. (Kawakami Decl., ¶ 6.) Nothing in the record identifies a community norm bearing on the recordings, and nothing attributes to any recorded customer conduct beyond presence and ordinary shopping. Customers shopping in a market's public aisles conduct themselves where anyone present can see them, and "there can be no privacy in that which is already public." (Gill v. Hearst Publishing Co. (1953) 40 Cal.2d 224, 230.)

B. Camera Placement

Defendants support the second interest with the same declaration. Kawakami states that the CCTV video system "is one tool businesses, like Defendants, use for loss prevention." (Kawakami Decl., ¶ 2.) She states that the footage lets a viewer determine what the camera's view reaches, and that disclosure would reveal "the extent to which certain areas of the store are monitored and how to avoid them." (Ibid.)

Defendants lodged the recordings with the Court. (Mot., at p. 2:2-3.) The recording shows what one camera captured from one angle on one occasion. It does not show how many cameras the store operates, which areas go unmonitored, whether the coverage is already apparent to anyone walking the aisle, or what disclosure would cost the store's loss prevention. Those are the facts that would make camera coverage an interest overcoming public access. Rule 2.551(b)(1) required the moving papers to state them.

IV. Probability of Prejudice

Next, Defendants argue that the interests they identify would be prejudiced without sealing. They say the information the recordings contain "could be used for shoplifting, vandalism, or other harmful purposes," that public access would violate the privacy of third-party individuals not involved in the lawsuit, and that the information could be republished. (Mot., at p. 5:10-13.)

Rule 2.550(d)(3) asks whether "[a] substantial probability exists that the overriding interest will be prejudiced if the record is not sealed." A statement that harm could follow describes a possibility. Universal City Studios accepted the contractual interest and denied sealing anyway, because the party made no showing of prejudice to its business interests. (Universal City Studios, *supra*, 110 Cal.App.4th 1273.) The declaration here states that public disclosure would cause Defendants harm "including, but not

limited to, competitive disadvantage, misuse of proprietary information, and potential economic injury.” (Kawakami Decl., ¶ 8.) It identifies no fact by which the Court could measure the likelihood of any of them.

Defendants fail to show that their interest in the camera’s placement is an overriding one, or that it is likely that they will suffer prejudice if it is disclosed. Accordingly, the Motion to Seal is denied.

The recordings remain lodged conditionally under seal. Defendants may notify the Court within 10 days of this order that the lodged record is to be filed unsealed, and on that notification the clerk unseals and files it. If Defendants do not notify the Court within 10 days, the clerk will permanently delete the video. (Cal. Rules of Court, rule 2.551(b)(6).)

CONCLUSION

The Motion to Seal is denied.